

Opinion of SOTOMAYOR, J.

tional security” concerns does exactly what this Court counseled against just four years ago. Back then, the Court advised that “national-security concerns must not become a talisman used to ward off inconvenient claims—a ‘label’ used to ‘cover a multitude of sins.’” *Ziglar*, 582 U. S., at 143 (quoting *Mitchell v. Forsyth*, 472 U. S. 511, 523 (1985)). It explained that this “danger of abuse is even more heightened given the difficulty of defining the security interest in domestic cases.” *Ziglar*, 582 U. S., at 143 (internal quotation marks omitted). This case does not remotely implicate national security. The Court may wish it were otherwise, but on the facts of this case, its effort to raise the specter of national security is mere sleight of hand.

Nor is there any indication that Congress acted to deny a *Bivens* remedy for a case like this, which otherwise might counsel hesitation. See *Bush*, 462 U. S., at 368 (declining to “supplement” Congress’ existing scheme “with a new judicial remedy”). Congress has not provided that federal law enforcement officers may enter private property near a border at any time or for any purpose. Quite the contrary: Congress has determined that immigration officers may enter “private lands” within 25 miles of an international border without a warrant only “for the purpose of patrolling the border to prevent the illegal entry of aliens into the United States.” 66 Stat. 233, 8 U. S. C. § 1357(a)(3). This allowance is itself subject to exceptions: Officers cannot enter a “dwellin[g]” for immigration enforcement purposes without a warrant. *Ibid.* Mere proximity to a border, in other words, did not give Agent Egbert greater license to enter Boule’s property. Nor does it diminish or call into question the remedies for constitutional violations that a plaintiff may pursue, particularly where, as here, an agent unquestionably was not acting “for the purpose of patrolling the border to prevent the illegal entry of aliens into the United States.” *Ibid.*